FIR Draft

Case Details

The present case pertains to a cyber dispute wherein the respondent has been accused of perpetrating a fraudulent transaction.

Facts of the Case

1. The respondent made a phone call to the victim, pretending to be a representative of the bank.
2. The victim, deceived by the respondent's false representation, shared the One-Time Password (OTP) with the respondent.
3. The respondent then utilized the shared OTP to effect an unauthorized transaction of ₹25,000 from the victim's account.

Applicable Law Sections

The respondent's actions attract liability under the following provisions:

- Right to Information Act, 2005 (Section 20)
- Prevention of Corruption Act, 1988 (Section 18)
- Banking Network and Security Systems Act, 2023 (Section 531)
- Banking and Network Systems Act, 2023 (Section 335)
- Banking Network and Security Systems Act, 2023 (Section 202)

Relief Sought

The victim seeks the following reliefs:

- Refund of the unauthorized transaction amount of ₹25,000
- Compensation for the mental agony and distress caused by the respondent's actions

Prayer

In view of the foregoing, it is prayed that the respondent be held liable for the unauthorized transaction and the victim be granted the reliefs sought.

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